



File No.: EXP202305828

AI/00270/2023

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On April 11, 2023, a complaint was filed by A.A.A. with entry registration number REGAGE23e00023390286 before the Spanish Agency for Data Protection against FAMILY ENERGY, S.L. with NIF B98997026 (hereinafter, the complained party/FAMILY ENERGY).

In this complaint, the complainant states that the complained company, where they work, has initiated a dismissal process as retaliation against a burofax sent by the employees claiming labor rights, and has installed video surveillance cameras in areas such as restrooms, break rooms, and lockers of the female workers in the company, which affects their privacy.

Along with the notification, images are provided showing what appears to be a single room in which 3 lockers, a refrigerator or kitchen area, and some cabinets with cleaning products are observed. From the perspective of the field of view of the photographs, it is not clearly discernible whether there are two surveillance cameras installed or just one.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 8/5/23, this complaint was forwarded to the complained party at the address listed in the complaint (locality of L'Ollería in Valencia), so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was sent electronically and received on 18/5/23, as noted in the acknowledgment of receipt included in the file.

Having not received a response from the complained party, this request for information was reiterated on 6/7/23, which was sent and received electronically by the complained party on 16/7/23.

THIRD: On July 11, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing, and this admission was communicated to the complainant on July 13, 2023, as noted in the acknowledgment of receipt attached to the file.

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FOURTH: On 24/7/23, a written response was received at this Agency regarding the transfer of the workplace that FAMILY ENERGY has in the locality of L'Ollería in Valencia, to which the requests made so far by the Agency were sent, in which it is stated that: "a document requesting information has been received, in which we are informed: this agency has become aware of the existence of surveillance cameras installed at Ausias March, no. 4, pta 3, L'Ollería, Valencia. We confirm that at this address, the company does not have any surveillance cameras."

FIFTH: On August 9, 2023, the General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD.

In the investigation procedure initiated with the number AI/00270/2023, the following preliminary inquiries were made by the inspector assigned to the file, which are recorded in the Report issued on

December 12, 2023:

- On August 16, 2023, the Data Inspection requested information from the complainant regarding the postal address of the workplace of the company Family Energy, S.L. where the surveillance cameras subject to the complaint have been installed. This request for information was notified to the complainant by postal and electronic means on the same day, August 16, 2023, but no response was received from them.

- As the complainant did not respond, on September 5, 2023, a request was made to the workplace of the entity being complained about, as stated in the complaint, to provide information regarding the postal address of the workplace where the surveillance system shown in the images attached to this request is installed. This request was notified electronically on September 16, 2023, and was additionally sent by postal means, but it expired as it was not collected by the respondent within the established timeframe.

- On September 20, 2023, the same request was reiterated to the same address of the entity being complained about, which was notified electronically on October 2, 2023, and by post on September 20, 2023.

- On November 7, 2023, FAMILY ENERGY submitted a written response, which was expanded on November 11, 2023, in which the following is stated:

- o The surveillance system is installed at the workplace located at Ronda Canal Imperial de Aragón no. 8, Zaragoza (50197), with the respondent being responsible for it.

- o An image of the information sign is provided, which, according to the respondent, is located at the entrance to the premises and contains information regarding the existence of the surveillance treatment, identification of the responsible party, the purpose of the treatment, legitimacy, recipients, and the possibility of exercising personal data protection rights.

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The video surveillance system was installed by the data controller, FAMILY ENERGY S.L., but its management is carried out by the company PREMIUM CRA, with which it has a contract for the purpose of a connection service to CRA (central alarm receiving station). It is stated in Clause Sixth 6.6 of the contract that the data controller expressly authorizes PREMIUM CRA to obtain and store images of the protected premises. The monitors for the cameras are installed at the headquarters of the company PREMIUM CRA. These monitors are only accessible to personnel authorized by that entity. The data controller does not have access to the images or the monitors.

A copy of the aforementioned contract dated May 1, 2023, is provided.

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They inform that the retention period for the recordings from the cameras is 12 days.

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They provide a photograph showing the field of view of the 12 cameras provided by PREMIUM CRA. They state that all the observed areas are monitored zones inside and outside the workplace, and that it is a gas station.

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They also provide photographs showing the position and placement of these 12 cameras.

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Regarding the photograph of the camera referred to in the complaint, provided by the complainant as Annex I, the respondent states that this corresponds to the camera located inside the facilities and that it is in a room focusing solely on the auxiliary safe that the data controller has inside the facility, as can be inferred from the photographic report provided.

In this regard, it is stated, literally, as follows:

“It should be noted that this is a photograph of a camera located inside the facilities and that focuses on the auxiliary safe that the data controller has inside the facility.

The image and the field of view captured by the camera correspond to that shown in the first photograph observed in Document No. 3, which is attached to this writing, and which is designated as 'auxiliary safe.' It is referred to for evidentiary purposes.

The photographs of Annex 1 referred to have been obtained with the intention of suggesting that the camera captures a rest area and lockers of a changing room.

However, nothing could be further from the truth. As indicated, the camera captures a room where there is a safe of the company (subject of the video surveillance), and although the presence of some refrigerators can be observed, it is not a dining or rest area that can be used by employees of the company for such purposes.

On the other hand, regarding the photograph in Annex 1 where lockers of a changing room are observed, if the situation of the camera is analyzed, it can be inferred that it is impossible for it to capture images of the lockers or of the people who might be in front of them."

LEGAL GROUNDS

I

Competence and Procedure

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

III

Obligations Regarding Video Surveillance

The images generated by a system of cameras or video cameras are personal data, since the physical image of a person is considered personal data worthy of protection, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, so their processing falls within the scope of application of this Regulation.

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful. Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD states that natural or legal persons, public or private, may carry out the processing of images through systems of cameras or video cameras for the purpose of preserving the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed." Regarding its application, the following should be noted:

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- This means that in a specific treatment, only relevant personal data that is pertinent to the case and strictly necessary to fulfill the purpose for which it is processed may be handled. The treatment must be adjusted and proportional to the intended purpose. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

- In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

- The application of the principle of data minimization in the context of video surveillance implies that images of public spaces cannot be captured, as the processing of images in public places can only be

carried out by the Security Forces and Bodies with prior governmental authorization. In some cases, to protect private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public space to ensure security purposes.

- That is to say, cameras and video cameras installed for security purposes may not capture images of public spaces unless it is essential for that purpose or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.
- Under no circumstances will the use of surveillance practices beyond the area subject to installation be permitted, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.
- Installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.
- Therefore, the placement of cameras directed towards the private property of neighbors with the aim of intimidating them or affecting their private sphere without a justified cause is not permitted.
- Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

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- Likewise, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers. The processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

- 1.- Individuals or legal entities, public or private, may establish a video surveillance system for the purpose of preserving the safety of individuals and property, as well as their facilities. It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the treatment cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.
- 2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.
- 3.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled. In this regard, Article 22 of the LOPDGDD provides for a "layered information" system concerning video surveillance.

The first layer must refer, at a minimum, to the existence of the treatment (video surveillance), the identity of the responsible party, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data. This information must be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it is an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

- 4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.
- 5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.
- 6.- The responsible party must maintain a record of activities of the treatments carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

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7.- The responsible party must conduct a risk analysis or, where applicable, a data protection impact assessment, to identify the risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of images from cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours. A security breach is understood to be the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4. The Spanish Agency for Data Protection provides access through its website [<https://www.aepd.es>] to the following documents of interest for the proper compliance with this regulation:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and Resolutions" / "Regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the section "Guides and Tools").

Also of interest, in case of processing low-risk data, is the free tool Facilita (in the section "Guides and Tools"), which, through specific questions, allows the responsible party to assess their situation regarding the processing of personal data they carry out, and if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

IV

Analysis of the present case

In the present case, the complaint accuses the employer, as the responsible party for the installation of the video surveillance system at the workplace, of capturing prohibited images by installing a camera inside an area dedicated to the break and changing room of the employees, as retaliation for a previous claim of rights made by them. For the purposes of this Agency, this implies analyzing whether, in light of the photographs provided by both parties, the responsible party may be capturing excessive images, which could violate the Principle of Proportionality and Data Minimization established in the aforementioned Article 5.1.c) of the GDPR.

In this case, following the documentation provided by both parties, it is raised whether one of the 12 cameras installed in the claimant's workplace could be located in a place designated for the rest or recreation of the workers.

(Changing rooms, dining areas, and similar) regarding which Article 89 of the LOPDGDD prohibits the installation of a camera, according to the following literal text:

"2. Under no circumstances shall the installation of sound recording systems or video surveillance in areas designated for the rest or recreation of workers or public employees be permitted, such as changing rooms, restrooms, dining areas, and similar."

Thus, we have two contradictory versions:

- The claimant states that the respondent has installed video surveillance cameras in areas of restrooms, break rooms, and lockers for the workers of their company, which affects the privacy of the workers. They provide several images of the camera's location within a room, showing 3 different perspectives from various angles that partially reveal different areas of the room where it is observed that the camera is situated on the ceiling, and that there is a refrigerator, 3 lockers with the names of

three women, and shelves with what could be cleaning products. It cannot be deduced from these images: (i) neither where the camera is focused, (ii) nor what its field of vision is, (iii) nor is there a photograph that allows for a global view of the entire room and the arrangement of its furniture and elements.

- The respondent provides a photograph showing the field of vision of the 12 installed cameras, each of which is enlarged. They state that the camera referred to by the claimant corresponds to the camera designated as "auxiliary safe" which appears as camera number 1. In both photographs, the field of vision of the camera and the total arrangement and content of the room are observed.

In light of the photographs provided by the respondent, which do show the total field of vision of the room, it is reasonable to support the version offered by them, as it can be clearly seen in the provided photograph that the camera directly focuses on the auxiliary safe, and that in the field of vision there are refrigerators, a small table without chairs or space to serve as a dining area, and some cabinets, but there is no evidence that the camera is capturing images of areas dedicated to the "rest or recreation of workers, such as changing rooms, restrooms, dining areas, and similar."

Specifically, from the photographs provided by the respondent, the following evidence confirms that it is true that the camera in the room referred to by the claimant does not capture any of these prohibited areas of the workplace, but rather its purpose is to monitor the auxiliary safe of the establishment:

(i) The photograph offers the field of vision of the 12 cameras that appear in the video surveillance system managed by the company PREMIUM CRA, among which different gasoline dispensers, the office, and the entrance to the office are observed, as well as the camera in the room referred to by the claimant, which is designated as "auxiliary safe camera."

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(ii)

Analyzing the field of vision of the auxiliary strongbox camera, it is clearly observed that the camera directly and frontally focuses on the auxiliary strongbox that the person responsible for the establishment (gas station) has in that room. This strongbox, coincidentally, does not appear in the partial photographs of the room provided by the claimant, a clear indication that the version of the respondent is correct.

(iii)

In view of the space and arrangement of the furniture and elements located in the aforementioned room, it can be objectively deduced that it does not have sufficient space or a table that allows for a dining or resting area for the workers, since there is a refrigerator, but this does not necessarily imply that any possible food and/or drinks deposited there are consumed in this room.

(iv)

Images of the workers' changing area are not being captured, as the lockers that appeared in the photographs provided by the claimant are not within the field of vision of the camera, since they are located behind the cabinets that the camera captures, which prevent seeing the lockers, and therefore much less will they allow seeing the people who are located behind them. Furthermore, by comparing both photographs, the position of the camera is compatible with the field of vision that appears in the photograph provided by the respondent, in which it is observed that the camera is not focusing in the direction of those lockers, being placed on the ceiling behind them.

Consequently, from all the above, it is deduced that there is no evidence that the surveillance camera of the room referred to by the claimant is capturing images of what could be a prohibited area for the rest or recreation of the workers, for the purposes provided in the aforementioned Article 89 of the LOPDGDD, but rather it captures images of the auxiliary strongbox located within it, which is not excessive but rather falls within the limits permitted by the aforementioned regulations, as its placement responds to evident security reasons of the company.

On the other hand, it should be noted that according to the inspector acting in the investigation procedure, from the rest of the documentation requested and provided by the respondent, no other

non-compliance with the regulations on video surveillance is observed, given that it has been verified that: "Regarding the video surveillance system installed in the workplace, it is managed by a company with which a service provision contract has been signed, it has an informative sign, the images are retained for 12 days, and there is no record that they capture areas outside the property, which is a gas station."

V

Conclusion

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Therefore, based on what is indicated in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing of the images captured by the video surveillance system of the respondent entity, in accordance with what has been indicated, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to FAMILY ENERGY, S.L. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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